

23STCV31252 23STCV31252

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Case Number: 23STCV31252 Hearing Date: July 6, 2026 Dept: 729

Superior Court of California

County of Los Angeles

DEPARTMENT

729

TENTATIVE RULING

RACHEL

GARIBAY,

vs.

GL LBH,

LLC, et al.

Case No.:

23STCV31252

Hearing Date: July 6, 2026

Plaintiff

Rachel Garibay's unopposed motion for preliminary approval of the Class Action and PAGA Settlement is granted.

The

Court sets a January 28, 2027 8:30 a.m. hearing in Department 729 on the Final Approval

of the Settlement; Plaintiff must file the requisite papers supporting final approval of the Class Action and PAGA Settlement by January 7, 2027.

Plaintiff Rachel Garibay (“Garibay”)

(“Plaintiff”) move unopposed for an order granting preliminary approval of the Class Action and PAGA Settlement.

(Notice Motion, pg. 2.) Plaintiff

moves for this Court to: (1) Preliminarily approve the settlement set forth in the Joint Stipulation of Class Action and PAGA Settlement and Release; (2) Conditionally certify the proposed Settlement Class; (3) Appoint Rachel Garibay as the representative for the Settlement Class; (4) Appoint Capstone Law APC as Class Counsel; (5) Approve distribution of the proposed Notice of Class Action Settlement to the Settlement Class; (6) Appoint CPT Group, Inc. as the Settlement Administrator; and (7) Set a hearing date for final approval of the settlement. (Notice Motion, pg. 2.)

Background

On October 16, 2023, Plaintiff filed with the LWDA and served on Defendants a notice under Labor Code §2699.3 (“PAGA Notice”). (FAC ¶51, Exh. 1.)

On December 21, 2023, Plaintiff filed her initial wage and hour class action complaint, against Defendants GL LBH, LLC; GL HOD, LLC; GL CCH, LLC; GL CCT, LLC; GL HMH, LLC; GL LBT, LLC; GL TOD, LLC; Ken Garff Automotive, LLC; GL Orange, LLC aka Stadium Nissan, LLC; KGA-CAM, LLC; and GL LOX, LLC (collectively, “Defendants”).

On April 24, 2026, the parties stipulated to Plaintiff filing the operative first amended complaint (“FAC”) wherein Plaintiff alleged ten causes of action against Defendants: (1) failure to pay overtime wages; (2) failure to pay minimum wages; (3) failure to provide meal periods; (4) failure to provide rest periods; (5) failure to maintain accurate payroll records; (6) failure to pay timely wages; (7) failure to pay timely wages on termination; (8) failure to reimburse business expenses; (9) violations of Labor Code pursuant to PAGA; and (10) engaging in unfair competition (“Class Action”).

Following the production of Defendants’ relevant California labor policy documents and Class Members’ time and wage

records, the Parties participated in a mediation with the Hon. Margaret A. Nagle (Ret.) on April 30, 2025. (Decl. of Perez ¶3.) Although the Parties did not settle at mediation, Judge Nagle helped to narrow the gap between the Parties' respective positions. With Judge Nagle's continuing guidance and mediator's proposal, the Parties were eventually able to negotiate a complete settlement of Plaintiff's claims and subsequently executed a memorandum of agreement in November 2025. The terms of the settlement are now set forth in complete and final form in the Joint Stipulation of Class Action and PAGA Settlement and Release ("Settlement Agreement"). (Decl. of Perez ¶3, Exh. 1.)

Plaintiff filed the instant motion on April 16, 2026. As of the date of this hearing no opposition has been filed.

Legal Standard

Any settlement of class litigation must be reviewed and approved by the Court. (See CRC, Rule 3.769(a).) This is done in two steps: (1) an early (preliminary) review by the trial court; and (2) a final review after notice has been distributed to the class members for their comment or objections. (See CRC, Rule 3.769(c)-(e).) The court has a "fiduciary responsibility" as guardian of absent class members' rights to ensure the settlement is fair. (Luckey v. Superior Court (2014) 228 Cal.App.4th 81, 95.)

California public policy strongly favors settlements. (See Osumi v. Sutton (2007) 151 Cal.App.4th 1355, 1359 ["It is, of course, the strong public policy of this state to encourage the voluntary settlement of litigation."]; Hamilton v. Oakland School District (1933) 2019 24 Cal. 322, 329 ["It is the policy of the law to discourage litigation and to favor compromises."].)

Under California law, a presumption of fairness attaches to a settlement where: "(1) the settlement is reached through arm's-length bargaining; (2) investigation and discovery are sufficient to

allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objections is small.” (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802.) A court may also consider other relevant factors, “such as the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the stage of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction . . . to the proposed settlement.” (Id. at pg. 1801.)

Discussion

The Settlement Agreement was reached through many months of arm’s-length negotiations among experienced counsel fully versed in the relevant facts and law, meeting the first three factors that support final approval of the settlement. (Dunk, 48 Cal.App.4th at pg. 1802.)

The proposed Settlement Class consists of all persons who worked for Defendants as nonexempt, hourly paid employees in California at any time during the period from October 16, 2022, through June 30, 2025 (“Class Period”) (“Class Members”). (Decl. of Perez ¶3, Exh. 1 at ¶5.) There are approximately 1,406 Class Members. (Motion, pg. 13.)

The Court finds that it has personal jurisdiction over all Class Members and PAGA Employees such that it has subject matter jurisdiction to preliminarily approve the instant Settlement Agreement. Plaintiff’s wage and hour claims are typical of the proposed Settlement Class because they arise from the same factual bases and are based on the same legal theories applicable to the other Class Members. Likewise, Plaintiff’s interests are entirely coextensive with the interests of the Class. Plaintiff maintains that she was injured by the same company-wide practices to which the proposed Settlement Class was subject and seeks the same relief. Here, an ascertainable class exists because in the context of the Settlement, the claims of Plaintiff are typical of the claims of class members, and Plaintiff and Plaintiff’s counsel have fairly and adequately represented and protected the interests of Class Members.

Additionally, Plaintiff is represented by

competent counsel who have extensive experience in litigating wage and hour class action cases. (See Decl. of Perez ¶¶10-18, Exh. 3.) Plaintiff's Counsel have successfully briefed, argued, certified, and gained state and federal court settlement approval of the same class-wide causes of action that are at issue in this case. (See Decl. of Perez ¶¶10-18, Exh. 3.)

Both the method of disseminating the Class Notice and content of the Class Notice satisfy due process and the requirements of California law. (See CRC, Rule 3.776(e)-(f); State of California v. Levi Strauss (1986) 41 Cal.3d 460, 485 [stating class notice must "fairly apprise the class members of the terms of the proposed compromise and of the options open to dissenting class members."].) Here, the Parties have jointly drafted the Notice of Class Action Settlement ("Class Notice") which fairly and neutrally informs Class Members of their rights and remedies in this action. The proposed Class Notice will be mailed to all Class Members by First Class mail and will include information regarding the nature of the lawsuit, a summary of the substance of the Settlement's terms, the class definition, the procedure and time period within which to submit Requests for Exclusions or objections to the Settlement, the date for the final approval hearing, the formula used to calculate settlement payments, and the terms and scope of the Released Claims. (Decl. of Perez ¶3, Exh. 1 at Exh. A.)

The Settlement was reached after extensive factual and legal investigation and research, which included: (a) determining Plaintiff's suitability as a private attorney general and class representative through interviews and a background investigation; (b) evaluating all of Plaintiff's potential representative claims; (c) researching similar wage and hour class actions as to the claims brought, the nature of the positions, and the type of employer; (d) analyzing Class Members' time and pay records; (e) reviewing Defendants' relevant labor policy documents; (f) researching settlements in similar cases; (g) evaluating Plaintiff's claims and estimating Defendants' liability for purposes of settlement; (h) drafting the mediation brief; and (i) participating in the mediation. (Decl. of Perez ¶8.)

The settlement amount reached in this case

provides significant recovery to Class Members and PAGA Employees and falls within the range of reasonableness. When including derivative penalties, such as waiting time penalties, wage statement violations, and discretionary PAGA penalties, Class Counsel theorized Defendants' maximum exposure to be approximately \$4,067,211.68. (Motion, pg. 19.) Class Counsel obtained a Gross Settlement Amount of \$1,850,000.00, or approximately 45% of Defendants' risk-adjusted exposure. (Decl. of Perez ¶3, Exh. 1 at ¶13; Motion, pg. 19.) Particularly in light of the risks involving obstacles to class certification, all issues and risks related to liability, the issues with manageability at trial, the discretionary nature of PAGA penalties, and considering the case law regarding fair, reasonable and adequate settlements, the settlement reached is fair, reasonable and adequate, and in the best interest of Class Members.

Plaintiff requests an enhancement award of \$10,000.00. In deciding the amount of an enhancement award for class representatives, relevant factors include the actions the plaintiff has taken to protect the interests of the class, the degree to which the class has benefitted from those actions, and the amount of time and effort the plaintiff expended in pursuing the litigation. (Cook v. Niedert (7th Cir. 1998) 142 F.3d 1004, 1015.) Plaintiff declares that she spent at least 25 hours in connection with this matter, which included conferring and working with her attorneys on the prosecution of her claims and evaluating the settlement and related documents. (See Decl. of Garibay ¶11.) Plaintiff's request for an enhancement award is fair and reasonable compensation for Plaintiff's effort in pursuing the action, serving as a private attorney general under PAGA, assisting counsel with the litigation and settlement, regularly conferring with counsel on the status of her case and the strategies for prosecuting the claims, and reviewing the proposed settlement to ensure that its terms are fair and provide adequate relief for the Settlement Class.

Accordingly, the Court grants the preliminary approval of the Settlement Agreement.

Attorneys' Fees and Costs

At final approval, Plaintiff will seek Court-approval of attorneys' fees of \$616,667 (one-third of the Class

Settlement Amount) and \$40,000 in litigation costs.

The proposed requested fees fall well within the historical range of attorney's fees awards under the common fund theory, which is generally from 25% to 50%. The requested fee is fair compensation for undertaking complex, risky, expensive and time-consuming litigation on a contingent fee basis.

Conclusion

Plaintiff's unopposed motion for preliminary approval of the Settlement Agreement is granted.

The Court sets a January 28, 2027 8:30 a.m. hearing in Department 729 on the Final Approval of the Settlement; Plaintiff must file the requisite papers supporting final approval of the Class Action and PAGA Settlement by January 7, 2027.

Moving Party to give notice.

Dated:

July _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior Court